

SYNTHETIC COUNTERFACTUAL APPELLATE BRANCH — NEVER OCCURRED ON
THE ACTUAL DOCKET — ALL FACTS AND IDENTIFIERS ARE FICTIONAL

UNITED STATES COURT OF APPEALS FOR THE FOURTH CIRCUIT

Leora Benton v. Blue Cedar Compliance, Inc.

No. SYN-CA4-26-CV-4101-CF-NEVER-OCCURRED

Counterfactual On-Briefs Judgment

Judgment entered

Entered May 1, 2026.

In accordance with the opinion entered today, the judgment of the United States District Court for the Eastern District of Virginia is **AFFIRMED**. The district court's narrow exclusion of the materially new subject in Tessa Wynn's late declaration remains in effect, and the final judgment for Blue Cedar Compliance, Inc. on Leora Benton's Title VII retaliation claim is left undisturbed. No portion of the case is remanded for further merits proceedings.

Costs are governed by the applicable appellate rule and may be addressed through a timely bill of costs. This judgment does not enlarge the district court's evidentiary ruling, decide any claim not presented in this action, or adopt a ground beyond those stated in the accompanying opinion. The clerk shall enter this judgment on the docket and serve it with the opinion on counsel for both parties.

Counterfactual On-Briefs Judgment

Post-judgment dates

Because judgment is entered on May 1, 2026, a petition for panel rehearing or rehearing en banc is due within fourteen days under the rule applicable to this civil appeal. The ordinary deadline is therefore May 15, 2026. A party seeking rehearing must comply with the governing content, form, and filing requirements; this judgment itself neither grants an extension nor excuses an untimely submission.

If no timely rehearing petition or qualifying stay motion is filed and no order changes the schedule, mandate ordinarily issues seven days after expiration of the rehearing period, on May 22, 2026. A timely petition, a ruling on such a petition, or an order concerning mandate may supply a different controlling event under the appellate rules. The clerk shall calculate the operative date from the events actually entered on this docket and shall not treat the prior on-briefs submission order as altering either post-judgment period.